

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 18, 2026
8:30 a.m./1:30 p.m.

13. KRISTA HARDWICK V. CHRISTOPHER HARDWICK

24FL0251

Petitioner filed an ex parte application for emergency orders to reinstate health insurance on April 9, 2026. Respondent filed a Responsive Declaration the same day. On April 10, 2026, the court granted the ex parte request, ordering Respondent to reinstate Petitioner's health insurance or pay for the equivalent insurance. The court reserved on the request for sanctions. Petitioner filed a Request for Order (RFO) on April 10, 2026, seeking the same requests as set forth in the ex parte application. Proof of Service shows Respondent was electronically served on April 13, 2026, which does not comply with the court's order of April 10th that the orders must be personally served.

Petitioner filed a Supplemental Declaration on June 4, 2026. There is no Proof of Service for this document, therefore, the court cannot consider it.

The court drops the matter from calendar due to the failure to properly serve Respondent. All prior orders remain in full force and effect. The court continues to reserve on the request for reimbursement and sanctions until the time of trial.

TENTATIVE RULING #13: THE COURT DROPS THE MATTER FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE RESPONDENT. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. THE COURT CONTINUES TO RESERVE ON THE REQUEST FOR REIMBURSEMENT AND SANCTIONS UNTIL THE TIME OF TRIAL.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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14. RYAN HAYNES V. SONYA LOSSIUS

PFL20210153

Respondent filed a Request for Order (RFO) on March 26, 2026, seeking modification of child custody and parenting plan orders. The parties were not referred to Child Custody Recommending Counseling (CCRC) as they had participated in CCRC within the prior six months. Proof of Service shows Petitioner was served by mail and electronically on March 26, 2026.

On April 14, 2026, the court in Department 8 referred the parties to CCRC with an appointment on April 27, 2026. The court ordered the CCRC report to be prepared on an expedited basis. However, a further review hearing was set in the event the report was not able to be prepared in a timely manner.

On May 7, 2026, the court continued the matter to the present date due to the lack of a CCRC report.

Both parties attended CCRC and were unable to reach any agreements. A report with recommendations was filed with the court on May 7, 2026. Copies were mailed to the parties on May 8th.

The court has read and considered the May 7th CCRC report. The court finds Petitioner has not overcome the presumptions of Family Code section 3044. The court maintains the present orders regarding legal and physical custody of the minor. The court adopts the recommendations as set forth in the May 7th CCRC report.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: THE COURT FINDS PETITIONER HAS NOT OVERCOME THE PRESUMPTIONS OF FAMILY CODE SECTION 3044. THE COURT MAINTAINS THE CURRENT ORDERS FOR LEGAL AND PHYSICAL CUSTODY. THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH IN THE MAY 7TH CCRC REPORT.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.